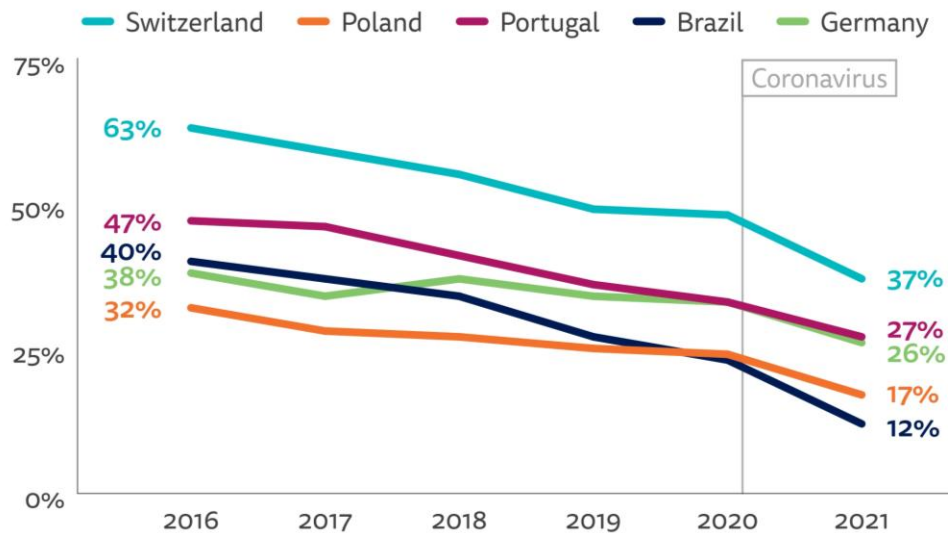


Press vs big tech: bargaining over payments

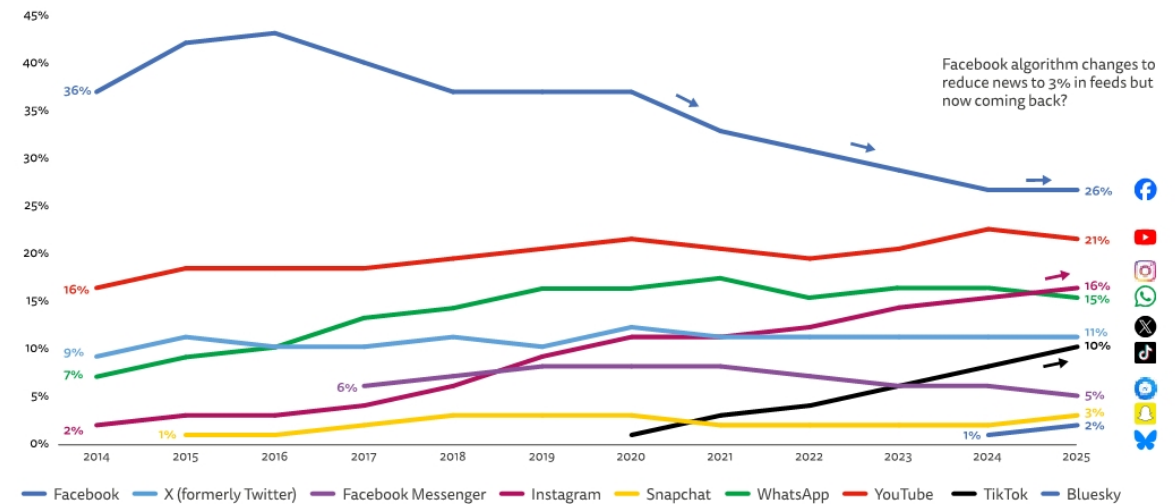
Dr Ula Furgal
ula.furgal@glasgow.ac.uk

25 February 2026

PROPORTION THAT USED PRINTED NEWS IN THE LAST WEEK (2016-21) – SELECTED MARKETS



PROPORTION THAT USED EACH NETWORK AS A SOURCE OF NEWS IN THE LAST WEEK (2014-2025) – SELECTED COUNTRIES



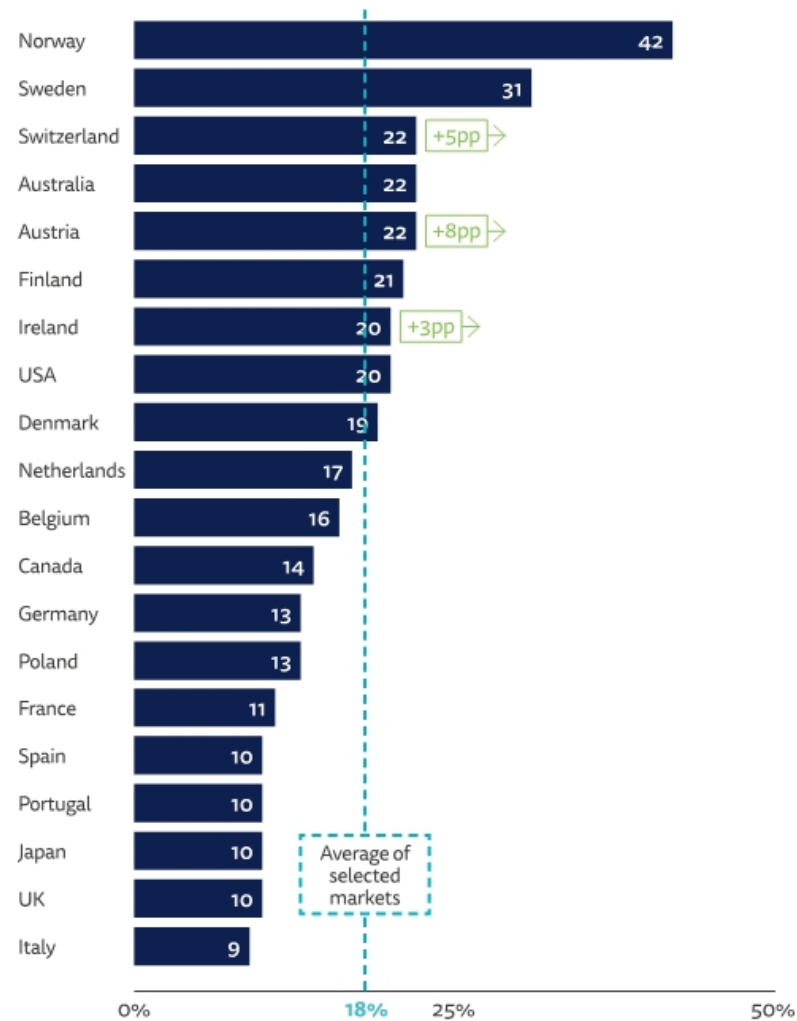
Q12b. Which, if any, of the following have you used for finding, reading, watching, sharing or discussing news in the last week? Base: Total sample in each country-year in UK, USA, Germany, France, Spain, Italy, Denmark, Finland, Australia, Japan (2014-25), Brazil & Ireland (2015-25) = 2000. Note: We did not ask about Bluesky in France, Italy, Finland, Denmark, Japan, and Canada (2024) and in France, Italy, Denmark, and Japan (2025).

Source: Reuters Institute Digital News Report 2021 & 2025

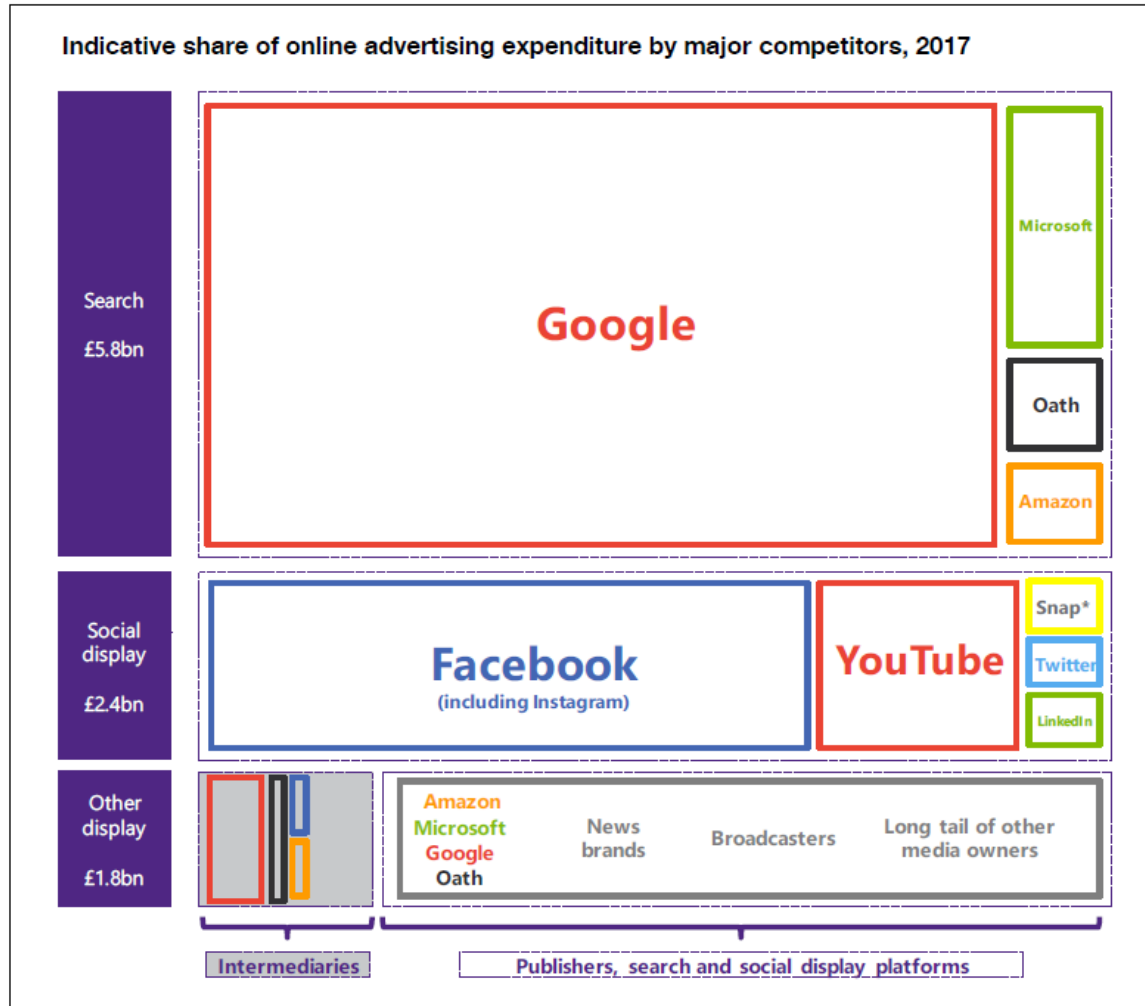
<https://reutersinstitute.politics.ox.ac.uk/digital-news-report/2021>

<https://reutersinstitute.politics.ox.ac.uk/digital-news-report/2025>

PROPORTION THAT HAVE PAID FOR ANY ONLINE NEWS IN THE LAST YEAR – SELECTED COUNTRIES



Q7a. Have you paid for ONLINE news content, or accessed a paid for ONLINE news service in the last year? (This could be a digital subscription, combined digital/print subscription or one-off payment for an article or app or e-edition). Base: Total sample in each country = 2000.



Source: Cairncross Review 2019

Fall in press publishers' revenues:
subscriptions and (print) advertising

Rise of digital advertising: **lion's share goes to digital platforms**

Role of referential traffic: new audiences (**market expansion**) and **dependencies** (unavoidable trading partners)

Top Stories

Liverpool F.C.
Zika virus
Google
Boko Haram
Nokia
United States Senate
Suzuki
Ghostbusters
Eric Fanning
Ecuador
Seattle, Washington,...
World
U.K.
Business
Technology
Entertainment
Sports
Science
Health

Top Stories



Manchester Even...

[See realtime coverage](#)

What were the main proposals in the Queen's speech?

Manchester Evening News - 1 hour ago



The 21 Bills unveiled at the State Opening of Parliament avoid controversy and many have been announced already. Shares; Comments.

'How I turned around my life in prison' BBC News

Jeremy Corbyn launches battle to stop tuition fee cap being lifted The Guardian

Opinion: The Investigatory Powers Bill questions Cameron's claim to a liberal agenda in this year's Queen's Speech The Independent

In-depth: Sport should be at the heart of David Cameron's prison reform agenda Telegraph.co.uk

Related
Elizabeth II »



Daily Mail

Girl kidnapped by Boko Haram found traumatized, with baby

Daily Mail - 1 hour ago

LAGOS, Nigeria (AP) - One of the teenagers kidnapped by Boko Haram extremists over two years ago from a school in northeastern Nigeria has been found with a baby and was reunited Wednesday with her mother - the first of the Chibok girls to be freed ...



BBC News

End of junior doctors' dispute in sight after breakthrough deal

Mirror.co.uk - 1 hour ago

After ten days of talks the BMA and Jeremy Hunt strike a deal. But it still has to be put to a vote. Shares; Comments. Get politics news by email.



BBC News

Venezuela crisis: Tear gas fired at anti-Maduro protest

BBC News - 20 minutes ago

Venezuelan police have fired tear gas against anti-government protesters in Caracas who demand a recall referendum on embattled President Nicolas Maduro.

Employment at record high across UK but North East unemployment is still highest in the country

ChronicleLive - 41 minutes ago

The North East still has the highest rate of unemployment in the country, according to figures released today. The latest Labour Market Statistics, released by the Office of National Statistics, reveal that employment in the region is up by 20,000 from ...

ChronicleLive

Ecuador hit by two big earthquakes but damage appears to be minimal

The Guardian - 16 minutes ago

People remain outside the foreign ministry building in Quito after a powerful earthquake shook Ecuador on Wednesday. Photograph: Rodrigo Buendia/AFP/Getty Images.

Your briefing

Friday, 20 October



Top stories >



INDEPENDENT

UK weather: Red weather warning sees second person killed as heavy rain batters UK

36 minutes ago

Full coverage



The Telegraph

By-election results live: No Tory seat is safe, says Starmer after record victories

46 minutes ago

Full coverage

Times Radio

Storm Babet: Army are ready to evacuate

1 hour ago

The Mirror

Storm Babet kills driver hit by falling tree as death toll rises

35 minutes ago

The Telegraph

High winds whip up sea foam as Storm Babet batters Scotland

3 hours ago

The Telegraph

Tories suffer record defeats in Mid Bedfordshire and Tamworth

5 hours ago

BBC

Tamworth and Mid Bedfordshire latest: Keir Starmer hails 'history in the making' after double by-election victory

13 hours ago

Financial Times

Historic by-elections and the curious case of Tamworth

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Local news >

GlasgowTimes

Liam Gallagher Glasgow tickets sell out in minutes angering fans

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GlasgowTimes

Elbow announce 2024 UK arena tour with Glasgow stop

2 hours ago



GlasgowTimes

Ice Cube: 'Glasgow is so memorable, it's etched in my brain'

6 hours ago



Picks for you

Sign in for personalised stories in your briefing and news feed

Sign in

Is news protected by copyright?

If yes, do news aggregators and similar services infringe it?

Links & communication to the public



Provision of links constitutes communication to the public, but not all links are infringing.

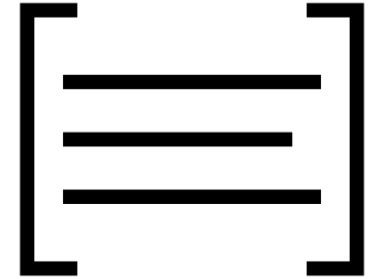
Press publications are originally published **with the consent** of the publisher

Links (usually) **do not circumvent restrictions** put in place by the press publishers

= no new public

but consider: personalisation of news, dynamic paywalls

Snippets and reproduction



Newspaper articles are copyrightable works

when they are author's own intellectual creation

we look at the form, manner in which the subject is presented, linguistic expression, not the subject itself

Art. 2 InfoSoc Directive: the exclusive right of reproduction also covers **reproduction of work in part**, but –

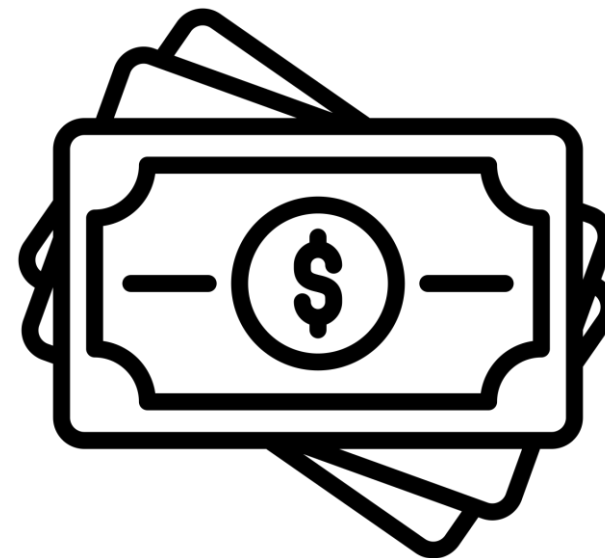
parts of work enjoy protection provided that they **contain elements which are the expression of the intellectual creation** of the author of the work

certain isolated sentences, **or even certain parts of sentences** in the text in question, may be suitable for conveying to the reader the originality of a publication

Infopaq C-5/08

Should platforms pay for using news content?

Why/why not?





78 grands reporters et rédacteurs
en chef de 27 pays ont cosigné la tribune

A woman with dark hair and bangs, wearing a light-colored sweater, stands in front of a bus. The bus has a sign that says "BUS" in large letters. The background is slightly blurred, showing some greenery and a building. Overlaid on the image is the text "Google explains arbitration under the News Media Bargaining Code". The word "arbitration" is highlighted in yellow.

Google explains arbitration under the News Media Bargaining Code

<https://www.youtube.com/watch?v=6lo01W3migk>

Sustainability of the press



<https://www.forbes.pl/prawo-i-podatki/wydawcy-apeluja-o-poparcie-dyrektwy-o-prawie-autorskim/0zme72g>



https://www.instagram.com/p/CK4Tix6Djku/?utm_source=ig_embed

Functioning of the web



<https://openmedia.org/article/item/implementing-link-tax-worst-way-possible>



<https://savethelink.org>

Like many others, I support the right of publishers and content creators to be properly rewarded for their work. This is without doubt an issue that needs addressing, both in Australia and around the world. However, I firmly believe that constraints on the use of hypertext links are not the correct way to achieve this goal. It would undermine the fundamental principle of the ability to link freely on the web, and is inconsistent with how the web has been able to operate over the past three decades. If this precedent were followed elsewhere it could make the web unworkable around the world. I therefore respectfully urge the committee to remove this mechanism from the code.

Tim Berners-Lee's submission to the Australian Parliament, 18 January 2021

If platforms are to pay for the use of online content,
what solutions do legislators propose?

European Union: CDSM Directive



2016: Proposal for a Directive on Copyright in the Digital Single Market (CDSM)

Art. 11: press publishers' right

Immediately after the publication, **criticism & controversies followed**

17 April 2019: CDSM Directive adopted

Art. 11 renumbered to **art. 15**

7 June 2021: deadline for implementation by Member States

September 2024: implementation complete

Press publishers' right = **related right benefitting publishers of press publications**

The purpose of **related rights** is to **reward investment** and organisational effort of content producers

Rightsholders: phonogram producers, broadcasters, film producers (+performers)

No general definition of subject matter or threshold of protection

Also referred to as **neighbouring rights**

Press publishers' right: art. 15 CDSM

Member States shall provide **publishers of press publications** with the right of reproduction and the right of making available for the **online use** of their press publications **by information society service providers**

The rights shall not apply to:

- private or non-commercial uses** of press publications by individual users
- acts of **hyperlinking**
- individual words or **very short extracts** of a press publication

The right lasts **2 years**

Authors to receive **an appropriate share** of revenues

Exceptions apply *mutatis mutandis*

Press publication: art. 2(4) CDSM



Collection composed mainly of literary **works of a journalistic nature**

individual item within a **periodical or regularly updated** publication under a single title
has a purpose of **providing the general public with information** related to news or
other topics

is published in **any media**

is published under the **initiative, control and editorial responsibility of a service provider**

Exclusive rights

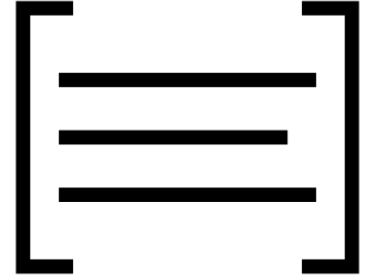


Right of **making available** and **right of reproduction** applied to **online uses** by **information society service providers**

*The rights granted to the publishers of press publications [...] **should have the same scope** as the rights of reproduction and making available to the public provided for in Directive 2001/29/EC [...]*

[para. 57 CDSM]

Exclusive rights



Right of making available **does not apply to act of hyperlinking**

Remember: copyright still applies (double-layering)

Right of reproduction **does not apply to single words and very short extracts**

no originality requirement

no explicit qualitative or quantitative criteria

principled-based approach: effectiveness of the right

content other than literary?

→ What is the role of snippets that accompany a link?

Information Society Service Provider

Directive 2015/1535: *any service normally provided for remuneration, at a distance, by electronic means and at the individual request of a recipient of services*

News aggregators and media monitoring companies (CDSM)

Search engines (CJEU)

Press publishers (FI)



What about **social media**?

Source of content: users

Indirect restriction of users' freedoms:

[55] *leaves private or non-commercial uses [...] by individual users*
unaffected, including where users share publications online

Not a target in 2016

Press publishers' right...

... is a right, **not an obligation**

... provides **basis for negotiation**, but does not determine how the negotiation should happen

Australia: News Media Bargaining Code



July 2019: the Australian Competition and Consumer Commission (ACCC) digital platforms enquiry and report

April 2020: ACCC tasked with preparation of mandatory code of conduct

February 2021: News Media Bargaining Code becomes law

December 2024: a proposal for News Bargaining Incentive first tabled

News Media Bargaining Code



Creates a framework for **designated digital platforms** and **registered news media organisations** to bargain over **remuneration** (and other issues) related to **making available** of covered news content by designated digital platform services.

Not only press publishers, but all news organisations (TV, radio, websites)

Only platforms **designated by Australian government**

Only news organisations **registered with ACMA** (communications authority)

Does not concern copyright/neighbouring rights

Basis for bargaining?

52B Making content available

- (1) For the purposes of this Part, a service makes content available if:
 - (a) the content is reproduced on the service, or is otherwise placed on the service; or
 - (b) a link to the content is provided on the service; or
 - (c) an extract of the content is provided on the service.
- (2) Subsection (1) does not limit, for the purposes of this Part, the ways in which a service makes content available.

Non-differentiation: a platform *must ensure that the supply of the digital service* **does not**, *in relations to crawling, indexing, making available and distributing[...]* covered news content **differentiate between news businesses (registered or not)**

Bargaining

When news business notifies a digital platform it wants to bargain, the **obligation to negotiate in good faith** is triggered



Final offer arbitration

Disclosure of information

Parties put forward a final remuneration offer

Panel picks one of the offers, setting **a lump sum remuneration for 2 years**

If neither offer is in a public interest, panel adjusts the most reasonable offer

Panel considers:

- benefits and reasonable costs carried by news businesses and platforms

- undue burden to the commercial interests of a platform

- power imbalance between parties

Does the Code work?

Not exactly...

To date, no platform has been designated by the Australian government.



Facebook reverses Australia news ban after government makes media code amendments

Treasurer Josh Frydenberg announces a compromise has been reached at the 11th hour as the legislation is debated in the Senate

- Facebook's capitulation is the beginning of the project to regulate Big Tech

How do EU and Australian approaches compare?

France: competition law steps in

July 2019: press publishers' right implemented

September 2019: Google announces it will **no longer display previews** in search results

Complaints filed with French Competition Authority (ADLC): **abuse of dominant position**

April 2020: ADLC adopts interim measures, **Google obliged to negotiate** and restore previews

December 2021: Google and publishers agree on negotiation framework

June 2022: ADLC approves the negotiation framework and stays the proceedings



EU: bargaining according to MS



Collective bargaining

publishers bargain as a group

Collective management

collective management organisations (CMOs) bargain for publishers
licensing with an **extended effect** (licensing covers non-members)
possibility to **opt-out**

Negotiation principles

fair, equal and non-discriminatory approach towards publishers

Transparency obligation

provision on information on the extent of use and generated revenues

EU: negotiation mechanisms

	Italy	Belgium	Greece	Czechia	Poland
Legal basis	Art. 43-bis	Art. XI.216/2	Art. 51B	§ 87b	Art. 99 ⁷ -99 ¹⁷
Public body	AGCOM	IBPT	EETT	Ministry of Culture	UKE
Obligation to negotiate in good faith	Yes	Yes	NM	Only ISSP	NM
Obligation to enter negotiations	NM	Yes	NM	NM	NM
Ban on visibility restrictions	Yes	NM	Subject to EETT decision	Yes, qualified for dominant ISSP	NM
Transparency obligation	Only ISSP	Only ISSP	Both, subject to EETT decision	Both, subject to Ministry's request	Only ISSP / Both subject to UKE decision
Length of negotiations before recourse	30 days	4 months	60 days + 30 days for the recourse	60 days	3 months
Recourse to a public body	Both parties, need to present an offer	'The first party to act'	Both parties, need to present an offer	Both parties	Both parties, need to present an offer
Decision of a public body is binding	No	Yes	No	No	No (mediation) / Yes (UKE ruling)
Recourse to a court	Both parties	Both parties	Both parties	Both parties	Both parties

*This is a simplified view

Traditionally, copyright provides entitlements (rights) but does not interfere in private agreements. (Creator contracts provisions as an exception.)

Are negotiation frameworks created by MS **in accordance with the EU law, art. 15 CDSM in particular?**

Two pending references to the CJEU:

Meta (C-797/23) [Italy]

Streamz and others (C-663/24) [Belgium]

Main issues: right to remuneration, obligation to bargain, role of the regulator

Does the bargaining between press and platforms happen?
Yes (sort of).

Google licenses content from news publishers under the EU Copyright Directive

Jun 15, 2023 · 5 min read



Sulina Connal
Managing Director, News and Publishing Partnerships

[Source](#)

A united Danish media industry takes LinkedIn to court

AF: KAREN RØNDE – 6. FEBRUAR 2026

[Source](#)

Meta won't renew commercial deals with Australian news media

By political reporters [Georgia Roberts](#) and [Matthew Doran](#)

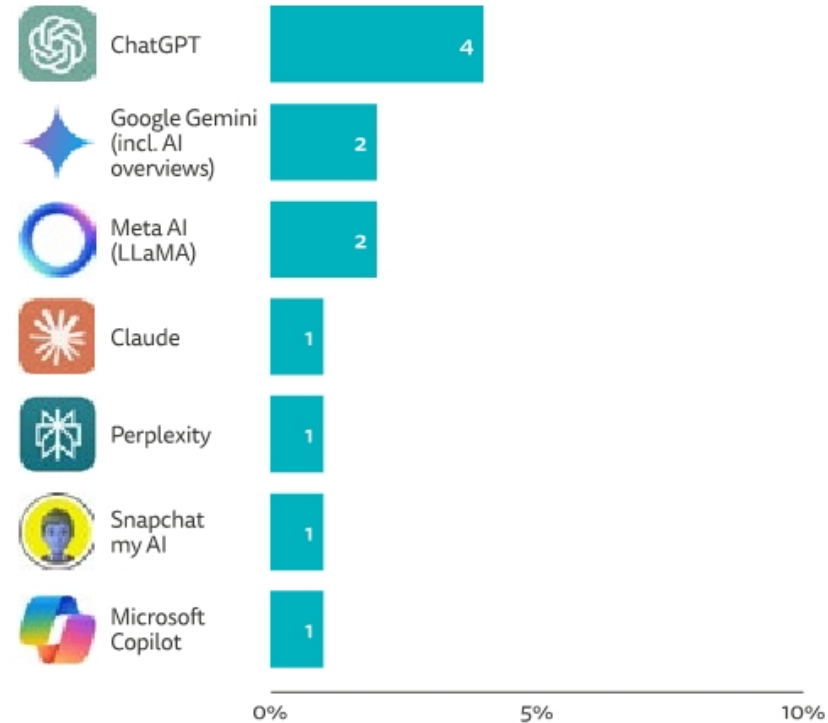
Federal Government

Fri 1 Mar 2024

[Source](#)

AI and news

PROPORTION THAT USED EACH AI CHATBOT FOR NEWS IN THE LAST WEEK – ALL MARKETS



Q10c_2025. When using the internet for news, which of the following, if any, have you used for news in the last week? Base: Total sample across all markets = 97,055.

Source: Reuters Institute Digital News Report 2025

<https://reutersinstitute.politics.ox.ac.uk/digital-news-report/2025>

How does the development of AI tools factor into the relationship between press and big tech?

Who's suing AI and who's signing: NYT and Chicago Tribune sue Perplexity, Meta signs licensing deals

Plus: Getty fails to secure AI copyright precedent in UK against Stability AI.

By Charlotte Tobitt

[Source](#)

DRAFT REPORT

on Copyright and generative artificial intelligence – opportunities and challenges
(2025/2058(INI))

Committee on Legal Affairs

Rapporteur: Axel Voss

[Source](#)

PRESSEMEDDELELSE | 9. dec. 2025 | Bruxelles | min read

Commission opens investigation into possible anticompetitive conduct by Google in the use of online content for AI purposes

[Source](#)